

SWAMI TOURS

TERMS & CONDITIONS FOR CAR RENTAL & TRAVEL SERVICES

Address: CBD Belapur, Navi Mumbai **Contact:** 9324378802

Email: swamitours001@gmail.com **Website:** swamitours.com

1. Booking Confirmation

A booking shall be considered confirmed only after the required advance payment has been received and the booking confirmation has been issued by **Swami Tours**.

Vehicle availability is subject to confirmation at the time of booking.

The vehicle category/model requested by the customer will be provided subject to availability. In unavoidable circumstances, Swami Tours may provide an equivalent or upgraded vehicle.

The customer must provide correct pickup location, destination, travel date, reporting time, passenger count and other relevant information at the time of booking.

2. Fare & Payment

The agreed fare will be based on the vehicle, route, duration, package, kilometres/hours and other conditions communicated at the time of booking.

Additional usage beyond the agreed package will be charged separately as per the applicable rate.

Toll, parking charges, state entry tax, permit charges, municipal/local taxes and other government-authorised charges are extra unless specifically included in the quotation.

Applicable GST/taxes, if any, will be charged as per prevailing law.

Additional charges arising due to customer-requested route changes, additional stops, waiting, extensions or itinerary changes shall be payable by the customer.

3. Outstation & Multi-Day Bookings

For outstation bookings, the applicable minimum kilometres/day or package conditions will be as communicated in the quotation/booking confirmation.

For multi-day/outstation duties, **driver allowance/night halt charges** will be applicable as agreed at the time of booking.

If the customer is required to arrange the driver's accommodation, the customer shall provide a **safe, clean and suitable place for sleeping and basic facilities for food and freshening up**.

If such arrangements are not provided by the customer, applicable driver allowance/accommodation/food charges shall be payable separately.

Where the driver is required to stay overnight outside the base location, applicable night halt/driver allowance will be charged irrespective of whether the vehicle is used during the night.

Any extension beyond the originally agreed duration shall attract additional charges.

4. Driver Duty & Rest

The driver is responsible for driving safely and in accordance with applicable traffic and motor vehicle laws.

The customer shall not compel or pressure the driver to drive continuously beyond safe working limits.

Adequate rest must be provided to the driver during long-distance and multi-day journeys.

Swami Tours reserves the right to stop or delay the journey where continuing to drive would create an unreasonable safety risk.

Driver decisions relating to road safety, traffic restrictions, weather conditions or vehicle safety shall be respected.

5. Night Travel

If night travel is specifically requested or required as part of the itinerary, applicable night charges, if any, will be charged as communicated at the time of booking.

The driver may refuse unsafe driving conditions where continuing the journey could endanger passengers, the driver or the vehicle.

6. Waiting & Additional Stops

The booking package includes only the usage specifically agreed at the time of booking.

Additional waiting beyond the included waiting period may attract waiting charges.

Additional pickup/drop points, sightseeing stops, route diversions and detours requested by the customer may attract additional kilometre/time charges.

Unplanned itinerary changes are subject to vehicle and driver availability.

7. Cancellation & Rescheduling

Cancellation charges will depend on the time of cancellation and the booking type.

Advance amounts may be non-refundable where the vehicle has been specifically blocked/reserved for the customer.

For cancellation close to reporting time, the customer may be liable for the applicable cancellation charge or committed booking amount.

Rescheduling is subject to vehicle availability and may attract additional charges.

No-show at the scheduled pickup location/time may be treated as a cancellation.

8. Pickup & Reporting

The customer should be available at the agreed pickup location and reporting time.

Delays caused by the customer may result in waiting charges or changes to the itinerary.

The customer is responsible for providing accurate pickup/drop details.

If the pickup location is inaccessible due to traffic restrictions, road closures, security restrictions or other circumstances beyond Swami Tours' control, the customer may be required to reach an alternative safe pickup point.

9. Passenger & Vehicle Safety

All passengers must comply with applicable traffic and safety regulations.

Seat belts must be used wherever provided.

Passengers must not interfere with the driver while the vehicle is moving.

Smoking, consumption of alcohol inside the vehicle, use of illegal substances and behaviour that may endanger the driver, passengers or vehicle are strictly prohibited.

The customer shall be responsible for damage to the vehicle caused by intentional, negligent or improper conduct of the customer/passengers, subject to applicable law.

10. Luggage & Personal Belongings

Passengers are responsible for their personal belongings, luggage, valuables, documents, electronic devices and other items carried in the vehicle.

Swami Tours shall not be responsible for loss, theft or damage to personal belongings left unattended in the vehicle, except to the extent liability cannot lawfully be excluded.

Luggage must be within the safe carrying capacity of the vehicle.

11. Vehicle Breakdown / Unforeseen Circumstances

Swami Tours will make reasonable efforts to provide a safe and roadworthy vehicle.

In the event of breakdown, accident, puncture, mechanical failure, traffic restriction, natural calamity, extreme weather, strike, road closure or other unforeseen circumstance, Swami Tours will make reasonable efforts to arrange an alternative vehicle or suitable solution, subject to availability.

Delays arising from circumstances beyond the reasonable control of Swami Tours shall not automatically constitute a failure to provide the service.

Any replacement vehicle may be of an equivalent or upgraded category, subject to availability.

12. Route & Permit Restrictions

Certain roads, destinations, restricted areas, forest areas, private roads, cantonment areas or other locations may require permission or be subject to restrictions.

The driver may decline to enter an unsafe, prohibited or legally restricted area.

Additional permits, taxes or charges required for a specific route or destination shall be payable by the customer unless expressly included in the quotation.

13. Passenger Capacity

The number of passengers shall not exceed the legally permitted seating capacity of the vehicle.

Swami Tours may refuse to carry passengers or luggage beyond the vehicle's permitted capacity.

The customer shall not insist on unsafe or illegal overloading.

14. Customer Responsibilities

- Provide accurate booking and travel information.
- Follow applicable traffic and safety rules.
- Treat the driver respectfully and professionally.
- Avoid abusive, threatening or unsafe behaviour.
- Not force the driver to violate traffic or motor vehicle laws.
- Pay applicable additional charges arising from customer-requested changes.
- Take reasonable care of the vehicle during the journey.

15. Driver Conduct

Swami Tours expects its drivers to behave professionally and courteously.

Any complaint regarding driver behaviour should be reported to Swami Tours as soon as reasonably possible.

Customers should not engage in arguments, threats or physical confrontation with the driver.

Serious complaints will be reviewed by Swami Tours and appropriate action will be taken.

16. Pricing & Quotations

All quotations are based on the details provided by the customer.

If the actual journey differs materially from the information provided at the time of quotation, the fare may be revised accordingly.

Verbal discussions will be subject to the final written quotation/booking confirmation.

Any special discount or promotional offer is subject to the terms communicated at the time of booking.

17. Force Majeure

Swami Tours shall not be held responsible for delays, cancellation or inability to provide the service caused by circumstances beyond its reasonable control, including natural disasters, floods, heavy rainfall, landslides, riots, strikes, road blockages, government restrictions, accidents, sudden vehicle failure, war, public emergencies or other unforeseen events.

Swami Tours will make reasonable efforts to assist the customer and provide an alternative solution wherever practicable.

18. Refunds

Any refund, where applicable, shall be processed after deduction of applicable cancellation charges, completed services, payment gateway/banking charges and other legitimately incurred expenses.

Refund eligibility will depend on the booking terms communicated to the customer.

Advance payments made for vehicle blocking/reservation may be non-refundable depending on the cancellation period and booking type.

19. Booking Confirmation Prevails

In case of any difference between these general Terms & Conditions and the specific terms mentioned in the customer's quotation/booking confirmation, the **specific written quotation/booking confirmation shall prevail** for that particular booking, unless otherwise required by applicable law.

20. Legal Compliance

All services shall be provided subject to applicable laws, rules, permits, taxation requirements and motor vehicle regulations in force from time to time.

Nothing in these Terms & Conditions is intended to exclude or restrict any consumer right, statutory protection or liability that cannot legally be excluded or restricted.

21. Dispute Resolution & Jurisdiction

Swami Tours and the customer shall first attempt to resolve any dispute amicably through mutual discussion.

If the dispute cannot be resolved amicably, it shall be dealt with in accordance with applicable Indian law.

Subject to applicable law and jurisdictional requirements, courts having appropriate jurisdiction in **Navi Mumbai / Maharashtra** shall have jurisdiction.

22. Acceptance of Terms

By making the booking, paying the advance amount, using the vehicle/service, or otherwise confirming the booking, the customer acknowledges that they have read, understood and accepted these Terms & Conditions.

SWAMI TOURS

Professional • Reliable • Comfortable Travel

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These Terms & Conditions are intended as a practical business document and should be reviewed by a qualified legal professional before being adopted as the final contractual terms of Swami Tours.